Expanding State Environmental Policy Acts for Efficiency and Progress

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October 2024. This paper was prepared for CE-579: Introduction to Transportation Planning Law, taught by Professor Patrick Harder at the University of Southern California. This exercise into policy analysis examines the intersection of federal and state environmental review frameworks—specifically NEPA and various State Environmental Policy Acts (SEPAs)—and evaluates policy reforms aimed at enhancing regulatory efficiency and streamlining transportation project delivery.

To address the convoluted and restrictive environmental review process for new construction of transportation projects, it would be highly beneficial to shift toward state-managed environmental review which would mitigate issues with preserving state autonomy, avoid extensive administrative costs, and reduce time spent on unnecessary assessments or delays prolonged by lawsuits. These conflicts may often arise as a result of the process required by the National Environmental Policy Act (NEPA). Implemented in 1970, NEPA requires that federal agencies assess the environmental effects of proposed actions. The process can add years of delay in the environmental review process for projects that are urgently needed to address transportation issues, such as consistent, sustainable maintenance for highways and bridges (Dill 9). While not every project requires NEPA, many state projects and permits are funded from federal sources or fall under joint state and federal jurisdiction. These actions typically require an environmental review for compliance with NEPA and SEPA, if present for a state. As mandated, NEPA retains regulatory oversight over projects that include state maintenance and construction of federal highways, state permitting of mine projects on federal land, or new construction of maritime infrastructure in major waterways (Council on Environmental Quality, Executive Office of the President 4).

NEPA also indirectly impacts most regulated communities by requiring environmental review of certain federal agency actions, which may include funding or approvals needed for public or private projects (Petersen et.al). Where public-private partnerships are intended to boost transportation development, project applicants face additional massive expenditure for time spent undergoing NEPA and subsequent costly litigation within the timeframe. Gaining control over environmental regulation and limiting the scope for lawsuits without significant cause can ensure that states are able to better align infrastructure development while innovating new solutions to address environmental concerns that are often used to block projects that benefit the broader population.

One proposed method for achieving this shift is the implementation of State Environmental Policy Acts (SEPAs). State environmental policy acts are creations of individual states and are not mandated by federal law, which allows for SEPAs to vary in terms of what types of actions trigger the environmental review process. Currently, only fifteen states have implemented SEPAs yet the jurisdictions serve as significant precedents in shaping environmental law and governance (NEPA.gov). Requiring nationwide adoption of SEPA would encourage state governments to coordinate plans and resources to achieve various environmental, economic, and social goals. Through the use of a systematic and interdisciplinary analysis of environmental actions, SEPAs embolden state agencies to establish a working partnership between governing bodies and community members concerning the protection of the environment, while also fostering economic development that is socially sound.

1. A New Approach:

The core motivation of advocating for an approach that reflects state sovereignty is to prioritize projects with regional or local benefits providing greater flexibility in how states choose to define the scope of environmental review and which projects require it (Council on Environmental Quality, Executive Office of the President). As of now, in cases where federal and state environmental reviews overlap, states with SEPAs typically incorporate NEPA requirements into their processes, creating a coordinated review that satisfies both federal and state standards (Montana State Legislature, Environmental Quality Council 70). It can be time-consuming and resource-intensive for applicants to prepare and submit similar documents to both levels of government. Expanding the SEPA model to all states would retain the core principles of NEPA while avoiding costs associated with extensive debate surrounding conflicting alternatives, compliance, and potential delays. If control for environmental review standards was distributed to state agencies, SEPAs would allow for agencies to expedite certain transportation projects and bypass NEPA, provided that they fulfill a standard requirement of provisions for public disclosure of environmental impact assessments to ensure that stakeholders have access to information about potential impacts and can offer public comment. State and local governance bodies can more easily adapt to feedback and adjust project designs or timelines based on input from local communities if received early on in the process.

A particular pilot program to reference is the U.S. Department of Transportation (DOT) Program for Eliminating Duplication of Environmental Reviews. Agencies establishing rules to govern the regulations of this program consist of the Federal Highway Administration (FHWA), Federal Railroad Administration (FRA), Federal Transit Administration (FTA), and U.S. Department of Transportation (DOT). Amendment of Section 1309 of the Fixing America's Surface Transportation (FAST) Act directs the Secretary of Transportation to establish a pilot program authorizing up to two States to conduct environmental reviews and make approvals for surface transportation projects under State environmental laws and regulations, instead of NEPA.

Requirements of the Pilot Program include criteria necessary to determine whether State laws and regulations are at least as stringent as the applicable Federal law. Pursuant to 23 U.S.C. 330(a)(1) and § 778.103(a)(3), the State must already be a participant in the Surface Transportation Project Delivery Program (Section 327 Program) to participate in the Pilot Program. The program allows for NEPA to be substituted by the State's alternative environmental review and approval process when an approval would require both a State and a Federal environmental review, as well as in cases only requiring Federal environmental review. Development of future programs to provide states with broader environmental review oversight would be well-informed of the public's anticipatory concerns with state eligibility and standardization among different states' approach to environmental review. Rather than detailing an exhaustive list of separate requirements, it was proposed that State law be evaluated for equivalency to the NEPA process as even existing SEPAs with extremely stringent requirements may require a lower level of detail than NEPA in some specific areas. As a general response, the Agencies confirm that whole criteria for determining stringency must "provide for protection of the environment, provide opportunity for public participation and comment, allow access to the documentation necessary to review the potential impacts of projects, and ensure consistency of review of projects" (U.S. Department of Transportation (DOT), et al.). Additionally, the Agencies posit that requiring that a State law or regulation adopt the same circulation requirement applicable to NEPA is overly restrictive as some States have their own public involvement procedures and applicable laws. States may also have adequate public involvement procedures that are equally effective. With regard to informing broader adoption of SEPAs tackling the subject of transportation infrastructure, this pilot program exemplifies how steps are being taken to consider how states can take on a larger role in environmental reviews and the potential to effectively replace NEPA, provided they meet stringent criteria for environmental protection, public participation, and consistency.

When considering the limitations of NEPA, it is important to recognize how state-led environmental reviews, under SEPAs, can provide more localized and efficient governance. Public agencies are not necessarily required to implement NEPA's recommendations for an environmentally preferable alternative aside from applying them in consideration to decision-making, further raising the question of the necessity for NEPA's involvement in certain projects that would be best streamlined. Often, the prerogatives of federal agencies concern nation-wide social, economic, and political interests that limit resources from needs-based development such as state roads and bridges. Local concerns such as subway and bus systems, or bicycle paths, require detailed input from local stakeholders, including community groups, businesses, and individuals (Goff and Grinney). Being geographically and administratively closer to provide assistance or foster engagement, state officials can more easily build personal relationships and trust with constituents. Across the many diverse regions of the United States, each differing in natural environment and transportation patterns, existing SEPAs largely mirror NEPA's procedural requirements for environmental review (Washington Department of Ecology 6). Each SEPA's review standards, with regard to transportation, can be tailored to consider infrastructure and permits pertaining to unique traffic patterns, land use, and regional economic needs.

A common concern for excluding NEPA in the review process is variability across states in the specific scope of what constitutes an environmental impact. Many SEPAs do require the presentation of environmental impacts, although some states may have broader definitions that encompass a wide range of social, economic, and environmental factors. As mentioned in the next section, other SEPAs may focus more narrowly on ecological considerations to allow for faster project delivery. While NEPA does not necessarily require any kind of environmental mitigation or constraints on implementation, local and state agencies, particularly those in more rural areas, may be impacted by the intervention of federal agencies who are unaware of a state's environmental considerations. The effect on projects' timely completion may inadvertently neglect true assessment of community needs and net benefits.

It is not without recognition that NEPA sets a national baseline for environmental protection on federal lands and for projects involving federal funds or permits. Advocating for the removal of NEPA entirely would lead to a patchwork of state-level laws without any overarching federal standard. Uneven levels of environmental oversight across the country, depending on state regulations, are notable concerns.

However, to balance environmental protection with timely project completion, it would be best to strengthen state oversight to authorize environmental review of projects. Federal authority should be limited to generally ensuring that there is nationwide adoption of a SEPA framework for each state, and it should be prohibited from necessitating NEPA as a blanket federal requirement. Many existing SEPAs integrate NEPA requirements in their processes to avoid resources spent on redundant assessments or potentially confusing project applicants with various layers of state and federal compliance to navigate. This comes in addition to potential funding shortages, changes in design, contractor delays, and compliance with environmental permitting requirements, which can affect the ability to deliver transportation projects on schedule and within budget.

A review of twelve highway projects in Oregon found lengthier average timelines to complete the NEPA process, although not disproportionately slow compared to the rest of the country. The study affirms that the environmental review process is subject to non-environmental concerns factoring into the timeline, and cites other national studies that suggest environmental issues are not the most frequently cited reasons for project delays. In the Oregon report, environmental issues do not appear to be the major cause of lengthy NEPA processes and, instead, point to significant delays and increased costs due to other factors. Top sources of project delays were attributed to design changes (83% of projects), citizen/property owner concerns (75%), communications and staffing problems/turnover (42%), and funding availability (42%), as seen in Table 4 Sources of Project Delay Identified in Project Files and Interviews (Dill 11).

Some of these changes indicate that issues were not adequately addressed in the preliminary alternative selection process or were factors that the Oregon Department of Transportation could not reasonably anticipate. However, for the Oregon projects reviewed, the NEPA process took about half of the entire project time. The study found that the average time to complete the NEPA process, from Notice of Intent to Record of Decision was 6.1 years. The high number of business relocations was the variable most highly correlated with how long the entire NEPA process took (Dill 16). NEPA's broad goals require that social impacts are analyzed as part of the NEPA process, but these are not necessarily a natural environmental issue. Rather, they call for better communication and information between public-private partnerships which could be encouraged by mandating earlier involvement in order to obtain a streamlined project process and shorten overall timelines.

2. Precedents of SEPA Models:

A notable existing precedent of state regulatory power is the California Environmental Quality Act (CEQA). Enacted in 1970, CEQA is one of the most comprehensive and influential SEPAs in the U.S. As California's primary environmental review law, CEQA requires state and local agencies to identify significant environmental impacts of proposed projects and adopt feasible measures to avoid or mitigate those impacts. By setting strict environmental standards, CEQA embodies Californians' interests in progressive environmental solutions and high civic participation. The state's vastly diverse geography and ecosystems, ranging from coastal areas to deserts and forests, necessitate localized, flexible solutions. CEQA's process follows a similar framework to NEPA, but only applies to all "activities directly undertaken by a governmental agency, activities financed in whole or in part by a governmental agency, or private activities which require approval from a governmental agency," as stated in § 15002, subd.(b)(1)-(3) of CEQA Statute and Guidelines (Association of Environmental Professionals 136).

Public agencies and project applicants must consider the complexity and time spent processing and defending against litigations, without yet factoring in the NEPA process. It could be said that decision-making benefits from NEPA's analysis of a broader range of actions. However, NEPA does not also require mitigation for environmental impacts, regardless of significance. It only requires that agencies consider mitigation measures for all adverse environmental impacts. In contrast, CEQA requires the adoption of any feasible mitigation measures for all significant adverse environmental impacts (California Native Plant Society). CEQA allows cities and counties to tailor their environmental reviews to address specific local concerns, such as air pollution in urban areas or water shortages in agricultural regions, demonstrating the state's responsiveness to its communities' concerns. It remains a powerful regulatory tool for ensuring that state projects, including affordable housing and transit infrastructure, adhere to strict environmental standards. Additionally, CEQA has been instrumental in giving communities, non-profits, and environmental organizations the ability to challenge projects in court, fostering a high degree of public participation in environmental decision-making.

Under CEQA, the now-$68 billion California High-Speed Rail project has already faced multiple lawsuits, delaying construction timelines and pushing up costs as opponents challenge various environmental aspects of the rail system. One claim supported by petitioners from Kings County allege that the greenhouse gas emissions generated during the production of materials (like concrete) used in constructing a 114- mile segment of the project would negate the environmental benefits that the portion is expected to provide in terms of reducing greenhouse gas emissions over the next twenty to thirty years. Essentially, the lawsuit calls into question the environmental impact of the proposed construction and whether it would be outweighed by its long-term environmental benefits (Carlson 40). As a compelling argument appealing to the health and economic conditions of the impacted communities, the challenge to approval of the project underscores the active litigation culture in California for contesting perceived environmental impacts opened up via CEQA. For states that have a more comprehensive SEPA like California, the breadth of review by state agencies is often sufficient, and the added layer of politics and anticipation from awaiting a NEPA review from multiple federal agencies becomes suffocating.

When it comes to non-environmental concerns, proponents of NIMBYism have been vocal against development in their neighborhoods, and many also find that CEQA is a useful tool for delaying or blocking projects for reasons such as preserving property values. CEQA lawsuits can cause substantial delays in project timelines, sometimes stalling projects for years as environmental reviews are challenged in court. Along with high administrative burden for public agencies, litigation brings significant legal and project costs, as developers may need to change designs, conduct further environmental studies, or defend against lawsuits. Though not often seen immediately, these costs fall onto consumers by impacting public services, such as diverting funds that could have been used for actual construction and service improvements to transit services. In 2020, SB 288 was approved to ideally streamline CEQA reviews for certain transit projects, such as bike lanes, bus rapid transit, and light rail expansions. The reform seeks to limit litigation and improve project timelines for infrastructure that would meet state climate goals in reducing emissions and promoting sustainable transit options (California Legislative Information).

Another state with a strong SEPA, Montana, allows for the streamlining of the judicial review process for specific high-priority projects under its Montana Environmental Policy Act (MEPA). Although this does not apply to transportation projects, Montana will expedite the resolution of legal challenges related to environmental reviews for other large-impact projects such as energy infrastructure or public works that support economic development. MEPA is a state-specific environmental law that, like CEQA, requires public agencies to evaluate the environmental impacts of proposed projects before making decisions. Enacted in 1971, MEPA has played an essential role in Montana's environmental protection efforts, emphasizing the consideration of environmental, economic, and social impacts (Montana State Legislature, Environmental Quality Council 4). However, differences in MEPA and CEQA reflect the non-conforming flexibility that SEPAs can offer for adaptation to each state's transportation needs, political ideologies, and economic priorities.

While both MEPA and CEQA require state agencies to evaluate environmental impacts before approving projects, one of the main distinctions between MEPA and CEQA is the scope of application. In line with the interests of Montana's voters, MEPA applies specifically to state agencies in Montana and is limited to actions involving state funding or approvals. It decentralizes power by assuring that local governments and private projects without state involvement are not subject to MEPA's requirements unless they receive state support (Montana State Legislature, Environmental Quality Council 25) In contrast, CEQA applies to both state and local agencies in California, affecting a broader range of projects and likely reflecting the competing political forces vying for greater influence in environmental review. In comparison to MEPA and other SEPAs, CEQA is known for being more rigorous in its environmental protections, often requiring project applicants to consider and adopt feasible alternatives and mitigation measures. However, states like Montana or Alaska may prioritize projects to strengthen natural resource extraction for economic development over adhering to constraints to strict environmental regulations.

MEPA's more open approach to balancing development and environmental protection allows projects to proceed as long as the environmental impacts are adequately disclosed and considered, emphasizing the state's resource management and rural development. Additionally, MEPA's targeted application ensures that only state actions receive scrutiny, reducing unnecessary reviews for local governments unless state funds are involved. Under MEPA, project sponsors are also more incentivized to thoroughly comply with environmental regulations early in the project ((Montana State Legislature, Environmental Quality Council 55). Relating to NEPA, this early compliance reduces the potential for bureaucratic complications that would arise with NEPA's mandated layers of review that introduce delays and additional scrutiny, which can slow down projects even after state requirements are satisfied.

3. Reform of Litigation Misuse:

NEPA is frequently triggered for transportation infrastructure projects that receive federal funding due to the high potential for significant environmental consequences, requiring careful review to avoid harm to ecosystems, communities, and resources. In previously mentioned causes for prolonged project delays attributing to NEPA litigation, project opponents may argue that a proposed development would lead to increased traffic, displacement of residents, or socioeconomic disruptions, which can be framed as non-environmental concerns . Another frustrating non-environmental concern that can arise is the issue of administrative procedures wherein challenges present themselves regarding how federal agencies interpret and apply NEPA regulations. This can involve disputes from plaintiffs over how agencies assess the need for a supplemental EIS when new information becomes available . As such, lengthy federal review processes can impede timely project implementation, reinforcing arguments for reducing federal involvement of NEPA in environmental reviews for projects, such as light rail transit, that have been highly anticipated for years.

One exemplary case that delayed work on the $2.4 billion Purple Line light rail transit project in Maryland was *Friends of the Capital Crescent Trail v. Federal Transit Administration,* No. 17-5132. Reversing a district court decision, the U.S. Court of Appeals for the District of Columbia Circuit held that the Federal Transit Administration (FTA) and Maryland Transit Administration (MTA) fully complied with NEPA when approving the project.

The Purple Line is a 16.2-mile light rail transit project in the Maryland suburbs of Washington, D.C. The project is projected to provide east-west transit service connecting several major activity centers, including two employment hubs and the state's flagship university campus. It would also facilitate connections to four stations on the region's Metrorail subway system. Both MTA and FTA issued a Draft EIS in 2008 to examine multiple alternatives, and by mid-2009, the state identified light rail as its locally preferred alternative. In 2014, FTA issued a Record of Decision approving the light rail project, and the state then entered into a public-private partnership agreement with a developer team. As agreed upon, the developers would be responsible for completing the design, financing, and building the project, and then operating and maintaining it for 30 years.

The plaintiffs—an environmental organization and two individuals—challenged the Record of Decision in August 2014, bringing claims under NEPA and several other laws. Plaintiffs later filed two amended complaints claiming that FTA was required to prepare a Supplemental EIS based on various design changes to the project and other new information, including the potential effects of declining Metrorail ridership on Purple Line ridership forecasts (United States District Court for the District of Columbia 9).

In the first of three lawsuits filed by the same plaintiffs concerning the Purple Line light rail project, the plaintiffs contended that the FTA should have prepared a Supplemental EIS due to new information regarding Metrorail ridership, arguing that new data necessitated a reevaluation. However, the D.C. Circuit upheld the FTA's decision, determining that it had sufficiently analyzed whether changes in Metrorail ridership would affect the Purple Line's viability. The court emphasized that the FTA's analysis of various ridership scenarios demonstrated the project's continued alignment with its intended purpose, thus negating the need for a Supplemental EIS . Secondly, the plaintiffs also argued that the alternatives considered in the Final EIS were inadequate, as only the locally preferred light rail alternative and the No Action alternative were examined in detail. The D.C. Circuit rejected this claim, asserting that the adequacy of the alternatives analysis is based not on the number of alternatives but on the nature of the agency's action and the statutory framework in place. The court noted that, once the state selected its preferred alternative, the FTA's role shifted to approving that alternative, thereby adhering to NEPA’s principles (Perkins Coie).

The Purple Line in Maryland’s initial studies commenced in 1992 and is currently scheduled to open in late 2027. Since the NEPA process began in 2003, the delays associated with settling lawsuits, in addition to unfavorable economic conditions, serve to underscore the complexities and challenges associated with NEPA's requirements in federal transportation projects. Had the NEPA lawsuit not arisen, it is likely that the project would have progressed more swiftly through its approval and implementation phases. The legal challenges introduced delays in the decision-making process, extending the timeline for project approvals and potentially complicating negotiations with private partners, such as the developer team who are set to finance and maintain the project in the long-term. Moreover, the additional scrutiny from the litigation may have diverted resources and focus away from the construction efforts, further prolonging the project's timeline. Without the litigation, the agencies could have maintained momentum, allowing them to adhere more closely to the original project schedules and fulfilling commitments to improve transit infrastructure in Maryland more expediently (Chiappa et al).

Streamlining the process to expedite certain transportation projects could not only facilitate more efficient project development, but also reduce the potential for projects to be slowed down by administrative concerns with NEPA’s procedures in courts. A current proposal for reform suggests that amendments focus on narrowing the grounds for legal challenges, ensuring that only projects with legitimate environmental concerns can be subjected to lawsuits. This could prevent the misuse of NEPA by limiting lawsuits that are based on non-environmental factors. By setting stricter criteria for standing in lawsuits, such that groups must present a relation to environmental concern or activism, reform would prevent frivolous lawsuits or those motivated by economic or competitive interests. Additionally, establishing clear time limits for filing NEPA lawsuits and imposing shorter deadlines for judicial reviews could reduce the prolonged delays associated with litigation (Mackenzie). This would provide developers and agencies with more certainty and help projects move forward more quickly, such as in the aforementioned case of Montana's expedited judicial review process.

4. Looking Forward:

While concerns about inconsistencies across states in SEPAs are valid, they should be viewed through a lens that recognizes the potential benefits of local flexibility, innovation, empowerment, and collaboration. A state-led model allows each state to experiment with policies that best fit its needs. A first step may be towards building pilot programs across the nation that encourage states to develop pioneering review processes that others can adopt as well-crafted SEPAs can help to effectively mitigate the high litigation risks associated with extensive and often convoluted NEPA review processes. As seen in cases like the Purple Line light rail project in Maryland, essential projects that are not expedited face prolonged legal challenges that hamper progress due to increased potential for litigation in addition to costs for construction, labor, and external factors. By shifting more focus to projects' adherence to state-level regulations, agencies can streamline the environmental review process for transportation project implementation, particularly for surface transportation which has seen increased interest for its progress towards addressing climate goals and community welfare. SEPAs often provide the flexibility needed to expedite approvals while still adhering to essential environmental protections, thus enabling infrastructure development that is timely and economically viable, as outlined in Montana's goals for its environmental review procedures. Ultimately, adopting a balanced approach that leverages state regulatory frameworks could facilitate the timely advancement of critical transportation projects, thereby allowing public agencies to more effectively meet the growing transportation demands of urban populations and improve infrastructure resilience for future generations.

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